

# SOUTHERN CALIFORNIA PUBLIC-ENTITY RISK ALLIANCE

SCPERA — A Joint Powers Authority

Member Services & Coverage Administration

1801 Century Park East, Suite 900 · Los Angeles, California 90067

## MEMORANDUM OF COVERAGE

*Declarations & Schedule of Coverage*

|                               |                                                   |                    |                           |
|-------------------------------|---------------------------------------------------|--------------------|---------------------------|
| <b>Coverage Document No.:</b> | SCPERA-MOC-2025-ACTD-0074                         | <b>Issue Date:</b> | 06/24/2025                |
| <b>Program Year:</b>          | 2025–2026                                         | <b>Effective:</b>  | 12:01 a.m. PT, 07/01/2025 |
| <b>Supersedes:</b>            | SCPERA-MOC-2024-ACTD-0071<br>(7/1/2024–6/30/2025) | <b>Expiration:</b> | 12:01 a.m. PT, 06/30/2026 |

### ITEM 1. NAMED COVERED PARTY

#### **Alder Creek Transit District** (“the District”)

A California public transit special district organized under the Public Utilities Code

1200 Alder Creek Way

Rivergate, CA 91766

Main: (626) 555-0100

*Additional Covered Parties:* The District’s Board of Directors, elected officials, appointed officials, officers, employees, volunteers, and agents while acting within the course and scope of their duties for the Named Covered Party, subject to the terms of the Memorandum.

### ITEM 2. COVERAGE PERIOD

07/01/2025 to 06/30/2026, both dates at 12:01 a.m. Pacific Time at the address of the Named Covered Party stated above.

### ITEM 3. COVERED PROGRAMS (LINES OF COVERAGE)

The following lines are afforded under this Memorandum of Coverage on a per-occurrence basis except where noted:

| Line | Program                                                                          |
|------|----------------------------------------------------------------------------------|
| A    | General Liability (bodily injury, personal injury, property damage)              |
| B    | Automobile Liability (owned, hired, non-owned; revenue and non-revenue vehicles) |
| C    | Public Officials Liability / Errors & Omissions                                  |

Coverage is written on an occurrence basis for Lines A and B and on a claims-made-and-reported basis for Line C.

### ITEM 4. COVERAGE TOWER

The financial responsibility structure for each covered occurrence arising under Items 3.A, 3.B, or 3.C is as follows:

#### **Layer 1 — Self-Insured Retention (District Retained Layer)**

- Retained by: Alder Creek Transit District
- Amount: **\$2,000,000** per occurrence
- Basis: self-insured retention, inclusive of loss and allocated loss adjustment expense (ALAE)
- Funding: District Risk Management Internal Service Fund (Fund 605)

#### **Layer 2 — SCPERA First Excess Pooled Layer**

- Issuer: Southern California Public-Entity Risk Alliance (SCPERA)

- Amount: **\$8,000,000** per occurrence, excess of the \$2,000,000 self-insured retention identified in Layer 1
- Attachment Point: \$2,000,000
- Pool Share: 100% pooled among SCPERA member entities pursuant to the Joint Powers Agreement and the SCPERA Master Pooling Agreement (rev. 07/2023)

### **Layer 3 — Pooled Excess to Program Limit**

- Issuer: SCPERA (in conjunction with reinsurance placements as scheduled in Endorsement 3)
- Amount: additional pooled excess, attaching at \$10,000,000, up to the program aggregate limit
- **Program Aggregate Limit: \$25,000,000** per occurrence / \$25,000,000 annual aggregate

**Program Aggregate:** The maximum total amount payable under Layers 2 and 3 combined, for all occurrences during the Coverage Period, shall not exceed \$25,000,000.

## **ITEM 5. RETAINED LIMIT AND EXHAUSTION**

SCPERA's obligation under Layer 2 attaches only upon exhaustion of the \$2,000,000 self-insured retention by actual payment of loss and/or ALAE by the Named Covered Party or on its behalf. Reserves, incurred-but-not-paid amounts, and defense-cost expenditures that have not been paid do not erode the retention for purposes of attachment.

## **ITEM 6. DEFENSE**

The District is responsible for the investigation, defense, and settlement of all claims within the self-insured retention. SCPERA reserves the right, but not the duty, to associate in the defense of any claim reasonably expected to exceed 50% of the retention. Upon exhaustion of the retention, SCPERA shall have the right to associate in or assume the defense of any covered matter.

## **ITEM 7. NAMED COVERED PARTY CONTACT**

**Risk & Claims Manager:** Gordon Espinoza  
Alder Creek Transit District  
1200 Alder Creek Way, Rivergate, CA 91766  
Phone: (626) 555-0134  
Email: gespinoza@actd.gov

**General Counsel:** Diane Farkas  
Phone: (626) 555-0122  
Email: dfarkas@actd.gov

## **ITEM 8. BROKER OF RECORD**

Alliant Insurance Services, Inc. — Public Entity Group  
1301 Dove Street, Suite 200  
Newport Beach, CA 92660  
Producer: (as identified in the annual renewal file maintained by SCPERA Member Services)

## **ITEM 9. THIRD-PARTY ADMINISTRATOR (TPA)**

Carl Warren & Company  
Public Entity Claims Division  
2 MacArthur Place, Suite 500  
Santa Ana, CA 92707

Assigned Claims Handler: as designated per notice of loss.

The TPA is authorized to administer, adjust, and (within delegated authority) settle claims falling within the self-insured retention on behalf of the Named Covered Party. Settlement authority above the retention requires SCPERA concurrence.

## **ITEM 10. NOTICE OF OCCURRENCE**

Notice of occurrence, claim, or suit shall be given to SCPERA as soon as practicable, and in any event within thirty (30) days of the District's receipt of written notice of claim or service of suit that involves or is reasonably expected to involve amounts approaching or exceeding the self-insured retention. Notice shall be transmitted to:

Claims Notice

Southern California Public-Entity Risk Alliance

Attn: Excess Claims Unit

1801 Century Park East, Suite 900

Los Angeles, CA 90067

Email: [claims-notice@scpera.org](mailto:claims-notice@scpera.org)

**ITEM 11. SCHEDULE OF FORMS AND ENDORSEMENTS**

| No.                    | Title                                                 |
|------------------------|-------------------------------------------------------|
| SCPERA-MOC-100 (07/23) | Memorandum of Coverage — General Terms and Conditions |
| SCPERA-END-01          | Named Covered Party Schedule                          |
| SCPERA-END-02          | Public Officials Liability — Claims-Made Terms        |
| SCPERA-END-03          | Reinsurance and Pooled Layer Schedule                 |
| SCPERA-END-07          | Sexual Abuse and Molestation Sub-Limit                |
| SCPERA-END-11          | Punitive Damages Exclusion (California Public Entity) |
| SCPERA-END-14          | Nuclear, Biological, Chemical, Radiological Exclusion |
| SCPERA-END-19          | Cyber Liability Exclusion (separately placed)         |

**ITEM 12. DISCLOSURE STATUS**

The information contained in this Memorandum of Coverage constitutes an “application for insurance, or any policy or contract of insurance” within the meaning of California Code of Civil Procedure section 2017.210 and is subject to mandatory disclosure upon proper request in a pending civil action to which the Named Covered Party is a party. Nothing herein constitutes a waiver of any coverage defense, condition, exclusion, or reservation of rights available under the Memorandum of Coverage or the Master Pooling Agreement.

**AUTHORIZATION**

Issued on behalf of Southern California Public-Entity Risk Alliance:

*For SCPERA:*

*Countersigned for the Named Covered Party:*

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Ellen J. Whitmore  
Chief Underwriting Officer, SCPERA  
Date: 06/24/2025

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Gordon Espinoza  
Risk & Claims Manager, Alder Creek Transit District  
Date: 06/27/2025

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*END OF DECLARATIONS — SEE ATTACHED MEMORANDUM OF COVERAGE FORM SCPERA-MOC-100 (07/23) FOR  
GENERAL TERMS AND CONDITIONS*